

Court No. - 1

Case :- WRIT - C No. - 2372 of 2020

Petitioner :- Nirmala Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Thakur Prasad Dubey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Learned counsel for the parties are present.

As prayed, put up on 7.2.2020 as fresh before the appropriate Bench.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 23.1.2020

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Court No. - 32

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Thakur Prasad Dubey

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 30.11.2019 issued by the Tehsildar, Tehsil Sirathu, District Kaushambi.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to adopt coercive method against the petitioner in realizing the amount shown in the recovery citation."

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate her grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition

for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of her grievance within three weeks from today, her application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 8 weeks, the impugned recovery notice/citation dated 30.11.2019 issued by the respondent no. 3 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 7.2.2020

Arun